

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF MISSISSIPPI
OXFORD DIVISION**

MATTHEW OLIVER REARDON

PLAINTIFF

VS.

CIVIL ACTION NO.: 3:22-CV-00050-SA-JMV

STATE OF MISSISSIPPI, ET AL.

DEFENDANTS

**COUNTY DEFENDANTS' REPLY BRIEF IN SUPPORT OF
MOTION FOR JUDGMENT ON THE PLEADINGS**

Defendants Lafayette County, Mississippi (“the County”); Lafayette County Sheriff’s Department (“the Sheriff’s Department”)¹; and Joseph B. East, individually and in his official capacity (“Sheriff East”) (collectively, “County Defendants”) submit this Reply Brief in Support of Motion for Judgment on the Pleadings pursuant to Federal Rule of Civil Procedure 12(c).

I. ARGUMENT

A. Plaintiff’s Response is Untimely.

As a threshold matter, Plaintiff’s response in opposition is untimely. County Defendants filed their Motion for Judgment on the Pleadings on January 11, 2023 (Doc. 46), and Plaintiff’s response was due to be filed by January 25, 2023 pursuant to the local rules. L.U.C.R. 7(b)(4) (“Counsel for respondent must, within fourteen days after service of movant’s motion and memorandum brief, file a response and memorandum brief in support of the response.”). Plaintiff filed his response in opposition on March 17, 2023, nearly two months after the deadline. Doc.

¹ Although the Amended Complaint names both Lafayette County, Mississippi and Lafayette County Sheriff’s Department” as Defendants, it is well-established that a sheriff’s department simply is a department within a county and cannot be sued as a separate entity. *See Brown v. Thompson*, 927 So. 2d 733 (Miss. 2006) (holding “the [Bolivar County] Sheriff’s Department does not enjoy a separate legal existence, apart from Bolivar County...”). Thus, Lafayette County, Mississippi and Lafayette County Sheriff’s Department are the same entity for purposes of this lawsuit, and any reference to “the County” herein shall include both Lafayette County, Mississippi and Lafayette County Sheriff’s Department.

70. To ensure that Plaintiff received County Defendants' motion, County Defendants mailed the motion and memorandum brief to Plaintiff's last known home address (117 CR 401, Oxford, Mississippi 38655) and to the Lafayette County Detention Center on January 26, 2023. Doc. 54. County Defendants also e-mailed the motion and memorandum brief to the e-mail addresses then reflected on the electronic docket and in the signature block of all the pleadings Plaintiff had filed up to January 26, 2023.² The Court should not consider Plaintiff's untimely response. *See, e.g., Pierce v. Warden of Tarrant Cnty.*, No. 92-1693, 1993 WL 309935, at *2 (5th Cir. May 6, 1993) ("The district court did not abuse its discretion by failing to consider [pro se prisoner/plaintiff's] untimely response" to defendant's motion for summary judgment).

B. Plaintiff's Constitutional Claims Fail on their Face.

Plaintiff's oppositional response misses the mark in pleading a plausible basis for his constitutional claims. With respect to his constitutional claims against the County, Plaintiff's response, at best, merely recites the elements of his constitutional claims against the County; however, Plaintiff's response does not allege that any alleged deprivation of his First, Fourth, Fifth, and Fourteenth Amendment rights resulted from an official policy, custom, or practice of the County. *See Monell v. Dept. of Soc. Servs.*, 436 U.S. 658, 690-91 (1978). Both the Amended Complaint and Plaintiff's oppositional response are entirely silent as to any official policy, practice, or custom of the County or the Sheriff's Department. This glaring deficiency is a dispositive ground for dismissal of Plaintiff's constitutional claims against the County. *Id.*

² Plaintiff filed a Notice of Change of Address on February 27, 2023. Doc. 61. Even though County Defendants employed additional efforts to serve Plaintiff with their motion for judgment on the pleadings, including mailing the motion and memorandum brief to Plaintiff's last known home address and Lafayette County Detention Center and e-mailing the motion and memorandum brief to the e-mail addresses Plaintiff provided to the Court, prior to Plaintiff's Notice of Change of Address, Plaintiff was registered to receive electronic notice of all filings in this matter; therefore, County Defendants must presume that Plaintiff, at a minimum, had constructive notice of County Defendants' motion for judgment on the pleadings.

Moreover, as with the Amended Complaint, Plaintiff's constitutional claims against Sheriff East in his individual capacity fail because Plaintiff has not plausibly pled that Sheriff East violated "clearly established law" under the First, Fourth, Fifth, or Fifteenth Amendment as necessary to overcome qualified immunity. *See Carr v. Hoover*, No. 4:16-cv-88-MPM-DAS, 2018 WL 3636563 (N.D. Miss. July 31, 2018), *affirmed by* 837 Fed. Appx. 279 (5th Cir. 2020). Specifically, Plaintiff has not offered any case that is both "authoritative and specific" in support of his argument that Sheriff East violated "clearly established law." *Id.* at *8 (the determination of whether an official's conduct violated clearly established law "requires the court to inquire whether the identified case is both 'authoritative' and 'specific.'"). Therefore, Sheriff East is entitled to qualified immunity, and Plaintiff's federal claims against Sheriff East should be dismissed accordingly.

C. Plaintiff's State Law Claims Fail on Their Face.

As explained in County Defendants' opening brief, Plaintiff's state law claims for false imprisonment and negligent infliction of emotional distress fail as a matter of law because Plaintiff failed to provide pre-suit notice of those claims as required by Mississippi Code § 11-46-11. Miss. Code Ann. § 11-46-11 (requiring plaintiffs asserting claims against a governmental entity to "file a notice of claim with the chief executive officer of the governmental entity" at least 90 days before filing suit."); *Univ. of Miss. Med. Ctr. v. Easterling*, 928 So. 2d 815, 818 (Miss. 2006). Plaintiff contends that he provided the requisite pre-suit notice by serving an "Affidavit of Truth." Doc. 70, at 2-3. Notably, the "Affidavit of Truth" makes no reference to the Mississippi Tort Claims Act, nor does it refer to any of the specific state law claims Plaintiffs asserted in the Amended Complaint (or the allegations giving rise thereto). Additionally, the Amended Complaint makes much of the notion that Sheriff East did not respond to the "Affidavit of Truth," further evidencing

that Plaintiff did not intend for the “Affidavit of Truth” to serve as the notice required under Mississippi Code § 11-46-11. Doc. 30, at 28. Most importantly, Plaintiff does not cite any authority supporting his argument that the “Affidavit of Truth” satisfies the pre-suit notice requirements of the MTCA.

Even if the Court liberally construes the “Affidavit of Truth” as sufficient pre-suit notice under the MTCA, Plaintiff’s state law claims still fail. With respect to Plaintiff’s claims for false imprisonment and negligent infliction of emotional distress, those claims are substantively barred by the MTCA. *See Bell v. Miss. Dept. of Human Servs.*, 126 So. 3d 999 (Miss. Ct. App. 2013) (applying MTCA to false imprisonment claim); *Sloan v. Shannon*, 2009 WL 1162639, at *11 (N.D. Miss. Apr. 29, 2009) (applying MTCA to claim for negligent infliction of emotional distress). As for Plaintiff’s remaining state law claims for defamation, tortious interference with business relations, and intentional infliction of emotional distress, Plaintiff’s oppositional response contains no plausible allegation necessary to sufficiently plead any of those claims. The Court should likewise dismiss each of Plaintiff’s state law claims.

II. CONCLUSION

For each of the foregoing reasons, and for the reasons asserted in County Defendants’ motion for judgment on the pleadings (Doc. 46), County Defendants respectfully request that the Court dismiss Plaintiff’s Amended Complaint with prejudice.

Dated: March 24, 2023.

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CERTIFICATE OF SERVICE

I, Marcellus D. Chamberlain, hereby certify on this date I electronically filed the foregoing *COUNTY DEFENDANTS' REPLY BRIEF IN SUPPORT OF MOTION FOR JUDGMENT ON THE PLEADINGS* with the Clerk of the Court using the CM/ECF system, which sent notification to the following recipients:

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I, Marcellus D. Chamberlain, further certify that on this date I sent a copy of the foregoing *COUNTY DEFENDANTS' REPLY BRIEF IN SUPPORT OF MOTION FOR JUDGMENT ON THE PLEADINGS* to Pro Se Plaintiff by U.S. certified mail, return receipt requested, postage pre-paid, at the following address:

Matthew Oliver Reardon (MDOC #210988)
East Mississippi Correctional Facility
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Meridian, MS 39307

This the 24th day of March, 2023.

/s/ Marcellus D. Chamberlain
Marcellus D. Chamberlain